

		malice, oppression, or fraud, and defining such terms.) For example, the Complaint alleges that Abinante engaged in self-dealing against a business partner by, among other things, stealing or siphoning money from the business at Plaintiff's detriment. In sum, the motion to strike is DENIED in its entirety. Moving Defendant to give notice.
12	Salaiz vs. Ford Motor Company	<u>Motion for Judgment on the Pleadings</u> The court GRANTS Defendant FORD MOTOR COMPANY's ("Ford") motion for judgment on the pleadings as to the sixth cause of action for fraudulent inducement – with 20 days' leave to amend. As an initial matter, the court notes Ford did not satisfy Code of Civil Procedure section 439(a), which requires the parties to meet and confer in person, by telephone, or by video conference before filing a motion for judgment on the pleadings. (See Park Decl., ¶¶ 2-4.) Despite this deficiency, the court exercises its discretion to reach the merits of the motion at this time. <i>6th C/A (fraudulent inducement – concealment)</i> The elements of a cause of action for fraudulent concealment are: (i) concealment or suppression of a material fact; (ii) by a defendant with a duty to disclose the fact to the plaintiff; (iii) defendant's intent to defraud plaintiff by intentionally concealing or suppressing the fact; (iv) plaintiff was unaware of the fact and would not have acted as he did if he had known of the concealed or suppressed fact; and (v) as a result, the plaintiff sustained damage. (<i>Hambrick v. Healthcare Partners Medical Group, Inc.</i> (2015) 238 Cal.App.4th 124, 162; see also Civ. Code, § 1573.) "A duty to disclose a material fact can arise if (1) it is imposed by statute; (2) the defendant is acting as plaintiff's